

Bindu Mehta v. State of U.P. and 3 Others

Allahabad High Court · Division Bench · 30 March 2018 · Writ - C No. 9275 of 2018 · **Writ kept pending; complete account statement and speaking order on the 04.11.2017 correction application directed; no coercive steps on the 18.02.2018 bill if Rs.12,000 deposited, with restoration of the 08.03.2018 disconnection; listed after a month**

HEADNOTE

Where a consumer disputes an electricity bill after a prior writ had directed a Rs.50,000 deposit and a bill-correction application, and the licensee then issues a further bill including arrears without adjusting that deposit or passing a speaking order on the pending application, the writ court, though conscious that Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a remedy for a disputed bill, may keep the petition pending rather than relegate the consumer to that forum. The licensee is directed to produce a complete statement of account after adjusting all amounts deposited, and either to produce the order passed on the correction application or, alternatively, the Executive Engineer is to reconsider the dispute and pass a speaking order. Until further orders, no coercive step is to be taken on the impugned bill if the consumer deposits the estimated current charges, and on that deposit the disconnected supply is to be restored, with current monthly bills continuing to be paid. The correctness of the bill is not decided. Later listing of the same writ adds no construction.

FACTUAL SUMMARY

Bindu Mehta held electric connection No. 55765/3179. The meter was replaced in 2012 on the petitioner's application as defective. The petitioner's case was that electricity dues had been paid as billed until June 2015, after which a large demand was raised and the connection was disconnected.

The petitioner had earlier filed Writ-C No. 51131 of 2017, disposed of on 2 November 2017 with a direction to deposit Rs.50,000 and apply for correction of the bill. That deposit was made and an application dated 4 November 2017 sought rectification of the disputed amount. Without a speaking order on that application, the respondents issued a bill dated 18 February 2018 for Rs.2,48,516 for February 2018, including arrears but without adjusting the Rs.50,000. The petitioner challenged that bill as incorrect and excessive. The connection was said to have been disconnected on 8 March 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Disputed bill; Clause 6.5 acknowledged but writ kept pending; speaking order and accounts directed; interim restoration on deposit

QUESTION

Where a prior writ-directed bill-correction application remains undisposed and a later bill does not adjust the court-directed deposit, must the consumer be relegated to Clause 6.5, or may the writ court keep the petition pending?

HOLDING

The Court recorded that in a dispute of the electricity bill the petitioner has a remedy under Clause 6.5 of the Electricity Supply Code of 2005, but looking to the facts — a 2.11.2017 direction to deposit Rs.50,000 and apply for correction, a 4.11.2017 application still without a speaking order, and an 18.2.2018 bill of Rs.2,48,516 that did not adjust that deposit — it proposed to keep the matter pending. The respondents were directed to produce a complete statement of account after adjusting all amounts deposited, and to produce the order on the 4.11.2017 application or, alternatively, the Executive Engineer may reconsider the dispute and pass a speaking order, within three weeks, with a counter in a month. Until further orders, no coercive step shall be taken on the 18.2.2018 bill if the petitioner deposits Rs.12,000 as estimated current charges for February, and on that deposit the connection disconnected on 8.3.2018 shall be restored immediately; current monthly bills are to continue to be deposited. The writ was listed after a month. The bill was not decided. ¶ 30.3.2018

Interlocutory (30.3.2018, Pankaj Mithal, J. and Saral Srivastava, J.). Writ remains pending.

FLAG Unnumbered order-sheet of five listings: 21.3.2018, 27.3.2018 and 29.3.2018 (adjournments, Pankaj Mithal and Saral Srivastava, JJ.); 30.3.2018 (this interim); 3.1.2023 (Mahesh Chandra Tripathi and Vivek Kumar Singh, JJ., list in the next cause list). Clause 6.5 was acknowledged, not construed or applied as a remittal. Catalog hits on 6.5(a), 6.5(b), 6.5(b)(ii), 6.5.14, 6.5B, 16.5, and remittal tags (6.5-pending-complaint-writ-remitted; disputed-assessment-relegated-to-6.5(b)(ii); clause-6.5-alternate-remedy-to-writ) are false positives — the Court cited only 'Clause 6.5' and kept the writ pending.

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill The Court was conscious that a dispute of the electricity bill has a remedy under Clause 6.5, but looking to the undisposed 4.11.2017 correction application and the unadjusted Rs.50,000, it kept the writ pending instead of relegating the consumer. ¶ 30.3.2018

clause-6.5-pending-representation-to-be-decided Respondents were directed to produce the order, if any, on the 4.11.2017 bill-correction application, or alternatively the Executive Engineer may reconsider the dispute and pass a speaking order, with a complete statement of account adjusting all deposits. ¶ 30.3.2018

interim-restoration-on-part-payment-pending-assessment-challenge Pending the bill challenge, no coercive step on the 18.2.2018 bill of Rs.2,48,516 if Rs.12,000 estimated current charges for February are deposited; on that deposit the connection disconnected on 8.3.2018 is to be restored immediately, and monthly bills are to continue to be paid. ¶ 30.3.2018

procedural-listing-no-construction Adjournments of 21.3.2018, 27.3.2018 and 29.3.2018, and the 3.1.2023 direction to list in the next cause list, add no construction of Clause 6.5 or of the bill. ¶ 21.3.2018, 27.3.2018, 29.3.2018, 3.1.2023

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND QUANTUM OF THE ELECTRICITY BILL DATED 18.2.2018 FOR RS.2,48,516

The petitioner said the bill was incorrect and excessive and did not credit all deposits, including Rs.50,000. The Court called for accounts and a speaking order; it did not decide the bill. ¶ 30.3.2018

NOT DECIDED — WHETHER A SPEAKING ORDER HAD IN FACT BEEN PASSED ON THE 4.11.2017 CORRECTION APPLICATION, AND THE MERITS OF THAT APPLICATION

The licensee was to produce any such order or the Executive Engineer was to pass a speaking order. Not adjudicated.

¶ 30.3.2018